

THOMAS, J., concurring in judgment

In recent years, this Court has twice considered whether warrantless blood draws fall within an exception to the warrant requirement. First, in *McNeely*, a divided court held that the natural metabolization of alcohol in the bloodstream does not present a *per se* exigency that justifies an exception to the Fourth Amendment’s warrant requirement. 569 U. S., at 145. Then, in *Birchfield*, we held that blood draws may not be administered as a search incident to a lawful arrest for drunk driving. 579 U. S., at 476. The question we face in this case is whether the blood draw here fell within one of the “reasonable exceptions” to the warrant requirement.

II

The “exigent circumstances” exception applies when “the needs of law enforcement [are] so compelling that [a] warrantless search is objectively reasonable under the Fourth Amendment.” *King*, 563 U. S., at 460 (internal quotation marks omitted). Applying this doctrine, the Court has held that officers may conduct a warrantless search when failure to act would result in “the imminent destruction of evidence.” *Ibid.* (internal quotation marks omitted).

As I have explained before, “the imminent destruction of evidence” is a risk in every drunk-driving arrest and thus “implicates the exigent-circumstances doctrine.” *McNeely*, 569 U. S., at 178 (dissenting opinion). “Once police arrest a suspect for drunk driving, each passing minute eliminates probative evidence of the crime” as alcohol dissipates from the bloodstream. *Id.*, at 177. In many States, this “rapid destruction of evidence,” *id.*, at 178, is particularly problematic because the penalty for drunk driving depends in part on the driver’s blood alcohol concentration, see *ante*, at 852. Because the provisions of Wisconsin law at issue here allow blood draws only when the driver is suspected of impaired driving, *ante*, at 844–845, they fit easily within the exigency exception to the warrant requirement.

THOMAS, J., concurring in judgment

Instead of adopting this straightforward rule, the plurality makes a flawed distinction between ordinary drunk-driving cases in which blood-alcohol concentration evidence “is dissipating” and those that also include “some other [pressing] factor.” *Ante*, at 847, 854, 857. But whether “some other factor creates pressing health, safety, or law enforcement needs that would take priority over a warrant application” is irrelevant. *Ante*, at 854. When police have probable cause to conclude that an individual was driving drunk, probative evidence is dissipating by the minute. And that evidence dissipates regardless of whether police had another reason to draw the driver’s blood or whether “a warrant application would interfere with other pressing needs or duties.” *Ante*, at 857. The destruction of evidence alone is sufficient to justify a warrantless search based on exigent circumstances. See generally *McNeely*, 569 U. S., at 176–179 (opinion of THOMAS, J.).

Presumably, the plurality draws these lines to avoid overturning *McNeely*. See *id.*, at 156 (majority opinion) (holding that “the natural dissipation of alcohol in the blood” does not “categorically” support a finding of exigency). But *McNeely* was wrongly decided, see *id.*, at 176–183 (opinion of THOMAS, J.), and our decision in *Birchfield* has already undermined its rationale. Specifically, the Court determined in *McNeely* that “[t]he context of blood testing is different in critical respects from other destruction-of-evidence cases in which the police are truly confronted with a now or never situation.” 569 U. S., at 153 (majority opinion) (internal quotation marks omitted). But the Court stated in *Birchfield* that a distinction between “an arrestee’s active destruction of evidence and the loss of evidence due to a natural process makes little sense.” 579 U. S., at 471; see also *ante*, at 852–853. Moreover, to the extent *McNeely* was grounded in the belief that a *per se* rule was inconsistent with the “case by case,” “totality of the circumstances” analysis ordinarily applied in exigent-circumstances cases, see 569 U. S., at 156, that rationale was

SOTOMAYOR, J., dissenting

suspect from the start. That the exigent-circumstances exception might ordinarily require “an evaluation of the particular facts of each case,” *Birchfield*, *supra*, at 473, does not foreclose us from recognizing that a certain, dispositive fact is always present in some categories of cases. In other words, acknowledging that destruction of evidence is at issue in every drunk-driving case does not undermine the general totality-of-the-circumstances approach that *McNeely* and *Birchfield* endorsed. Cf. *ante*, at 850, n. 3.

* * *

The Court has consistently held that police officers may perform searches without a warrant when destruction of evidence is a risk. *United States v. Banks*, 540 U. S. 31, 38 (2003); *Richards v. Wisconsin*, 520 U. S. 385, 395 (1997); *Cupp v. Murphy*, 412 U. S. 291, 295–296 (1973); *Schmerber v. California*, 384 U. S. 757, 770–772 (1966). The rule should be no different in drunk-driving cases. Because the plurality instead adopts a rule more likely to confuse than clarify, I concur only in the judgment.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG and JUSTICE KAGAN join, dissenting.

The plurality’s decision rests on the false premise that today’s holding is necessary to spare law enforcement from a choice between attending to emergency situations and securing evidence used to enforce state drunk-driving laws. Not so. To be sure, drunk driving poses significant dangers that Wisconsin and other States must be able to curb. But the question here is narrow: What must police do before ordering a blood draw of a person suspected of drunk driving who has become unconscious? Under the Fourth Amendment, the answer is clear: If there is time, get a warrant.

The State of Wisconsin conceded in the state courts that it had time to get a warrant to draw Gerald Mitchell’s blood, and that should be the end of the matter. Because the plurality needlessly casts aside the established protections of

SOTOMAYOR, J., dissenting

the warrant requirement in favor of a brand new presumption of exigent circumstances that Wisconsin does not urge, that the state courts did not consider, and that contravenes this Court's precedent, I respectfully dissent.

I

In May 2013, Wisconsin police received a report that Gerald Mitchell, seemingly intoxicated, had driven away from his apartment building. A police officer later found Mitchell walking near a lake, slurring his speech and walking with difficulty. His van was parked nearby. The officer administered a preliminary breath test, which revealed a blood-alcohol concentration (BAC) of 0.24%. The officer arrested Mitchell for operating a vehicle while intoxicated.

Once at the police station, the officer placed Mitchell in a holding cell, where Mitchell began to drift into either sleep or unconsciousness. At that point, the officer decided against administering a more definitive breath test and instead took Mitchell to the hospital for a blood test. Mitchell became fully unconscious on the way. At the hospital, the officer read Mitchell a notice, required by Wisconsin's so-called implied-consent law, which gave him the opportunity to refuse BAC testing. See Wis. Stat. § 343.305 (2016). But Mitchell was too incapacitated to respond. The officer then asked the hospital to test Mitchell's blood. Mitchell's blood was drawn about 90 minutes after his arrest, and the test revealed a BAC of 0.22%.¹ At no point did the officer attempt to secure a warrant.

Mitchell was charged with violating two Wisconsin drunk-driving laws. See §§ 346.63(1)(a), (b). He moved to suppress the blood-test results, arguing that the warrantless blood draw was an unreasonable search under the Fourth

¹ Although the Wisconsin Supreme Court referred to the lapse in time between the arrest and the blood draw as lasting "approximately one hour," 2018 WI 84, ¶10, 383 Wis. 2d 192, 201, 914 N. W. 2d 151, 155, the state appellate court explained that Mitchell was arrested around 4:26 p.m. and that the blood draw took place at 5:59 p.m., App. 63–64.

SOTOMAYOR, J., dissenting

Amendment. In response, Wisconsin conceded that exigent circumstances did not justify the warrantless blood draw. As the State’s attorney told the trial court, “There is nothing to suggest that this is a blood draw on a[n] exigent circumstances situation when there has been a concern for exigency. This is not that case.” App. 134. Instead, Wisconsin argued that the warrantless blood draw was lawful because of Wisconsin’s implied-consent statute. *Id.*, at 133.

The trial court denied Mitchell’s motion to suppress, and a jury convicted him of the charged offenses. On appeal, the State Court of Appeals noted that Wisconsin had “expressly disclaimed that it was relying on exigent circumstances to justify the draw,” *id.*, at 64, and that this case offered a chance to clarify the law on implied consent because the case “is not susceptible to resolution on the ground of exigent circumstances,” *id.*, at 66. The Court of Appeals then certified the appeal to the Wisconsin Supreme Court, identifying the sole issue on appeal as “whether the warrantless blood draw of an unconscious motorist pursuant to Wisconsin’s implied consent law, where no exigent circumstances exist or have been argued, violates the Fourth Amendment.” *Id.*, at 61.

On certification from the state appellate court, the Supreme Court of Wisconsin upheld the search.² The Court granted certiorari to decide whether a statute like Wisconsin’s, which allows police to draw blood from an unconscious drunk-driving suspect, provides an exception to the Fourth Amendment’s warrant requirement.

II

The Fourth Amendment guarantees “[t]he right of the people to be secure in their persons . . . against unreasonable

²The Wisconsin Supreme Court rephrased the certified question, but, like the Court of Appeals, it recognized the State’s concession that the exigency exception did not apply and, accordingly, did not consider the issue in reaching its decision. See 383 Wis. 2d, at 202, 914 N. W. 2d, at 155.

SOTOMAYOR, J., dissenting

searches and seizures.” When the aim of a search is to uncover evidence of a crime, the Fourth Amendment generally requires police to obtain a warrant. *Vernonia School Dist. 47J v. Acton*, 515 U. S. 646, 653 (1995).

The warrant requirement is not a mere formality; it ensures that necessary judgment calls are made “‘by a neutral and detached magistrate,’” not “‘by the officer engaged in the often competitive enterprise of ferreting out crime.’” *Schmerber v. California*, 384 U. S. 757, 770 (1966). A warrant thus serves as a check against searches that violate the Fourth Amendment by ensuring that a police officer is not made the sole interpreter of the Constitution’s protections. Accordingly, a search conducted without a warrant is “*per se* unreasonable under the Fourth Amendment—subject only to a few specifically established and well-delineated exceptions.” *Katz v. United States*, 389 U. S. 347, 357 (1967) (footnote omitted); see *Riley v. California*, 573 U. S. 373, 382 (2014) (“In the absence of a warrant, a search is reasonable only if it falls within a specific exception to the warrant requirement”).

The carefully circumscribed exceptions to the warrant requirement, as relevant here, include the exigent-circumstances exception, which applies when “‘the exigencies of the situation’ make the needs of law enforcement so compelling that [a] warrantless search is objectively reasonable,” *Kentucky v. King*, 563 U. S. 452, 460 (2011) (some internal quotation marks omitted); the consent exception for cases where voluntary consent is given to the search, see, e. g., *Georgia v. Randolph*, 547 U. S. 103, 109 (2006); and the exception for “searches incident to arrest,” see, e. g., *Riley*, 573 U. S., at 382.

A

Blood draws are “searches” under the Fourth Amendment. The act of drawing a person’s blood, whether or not he is unconscious, “involve[s] a compelled physical intrusion be-

SOTOMAYOR, J., dissenting

neath [the] skin and into [a person's] veins," all for the purpose of extracting evidence for a criminal investigation. *Missouri v. McNeely*, 569 U. S. 141, 148 (2013). The blood draw also "places in the hands of law enforcement authorities a sample that can be preserved and from which it is possible to extract information beyond a simple BAC reading," *Birchfield v. North Dakota*, 579 U. S. 438, 464 (2016), such as whether a person is pregnant, is taking certain medications, or suffers from an illness. That "invasion of bodily integrity" disturbs "an individual's 'most personal and deep-rooted expectations of privacy.'" *McNeely*, 569 U. S., at 148.

For decades, this Court has stayed true to the Fourth Amendment's warrant requirement and the narrowness of its exceptions, even in the face of attempts categorically to exempt blood testing from its protections. In *Schmerber*, a man was hospitalized following a car accident. 384 U. S., at 758. At the scene of the accident and later at the hospital, a police officer noticed signs of intoxication, and he arrested Schmerber for drunk driving. *Id.*, at 768–769. Without obtaining a warrant, the officer ordered a blood draw to measure Schmerber's BAC, and Schmerber later challenged the blood test as an unreasonable search under the Fourth Amendment. *Id.*, at 758–759. The Court reinforced that search warrants are "ordinarily required . . . where intrusions into the human body are concerned," *id.*, at 770, but it ultimately held that exigent circumstances justified the particular search at issue because certain "special facts"—namely, an unusual delay caused by the investigation at the scene and the subsequent hospital trip—left the police with "no time to seek out a magistrate and secure a warrant" before losing the evidence. *Id.*, at 770–771.

More recently, in *McNeely*, the Court held that blood tests are not categorically exempt from the warrant requirement, explaining that exigency "must be determined case by case based on the totality of the circumstances." 569 U. S., at

SOTOMAYOR, J., dissenting

156. “[T]he natural dissipation of alcohol in the blood may support a finding of exigency in a specific case,” but “it does not do so categorically.” *Ibid.* If officers “can reasonably obtain a warrant before a blood sample can be drawn without significantly undermining the efficacy of the search,” the Court made clear, “the Fourth Amendment mandates that they do so.” *Id.*, at 152; see *id.*, at 167 (ROBERTS, C. J., concurring in part and dissenting in part) (“The natural dissipation of alcohol in the bloodstream . . . would qualify as an exigent circumstance, except that there may be time to secure a warrant before blood can be drawn. If there is, an officer must seek a warrant”).

In *Birchfield*, the Court rejected another attempt categorically to exempt blood draws from the warrant requirement. 579 U.S., at 474. The Court considered whether warrantless breath and blood tests to determine a person’s BAC level were permissible as searches incident to arrest. The Court held that warrantless breath tests were permitted because they are insufficiently intrusive to outweigh the State’s need for BAC testing. See *ibid.* As to blood tests, however, the Court held the opposite: Because they are significantly more intrusive than breath tests, the warrant requirement applies unless particular exigent circumstances prevent officers from obtaining a warrant. *Ibid.*; see *id.*, at 474–475 (“Nothing prevents the police from seeking a warrant for a blood test when there is sufficient time to do so in the particular circumstances or from relying on the exigent circumstances exception . . . when there is not”).³

³The Court in *Birchfield* concluded as much even while acknowledging that, in some cases, the suspect would be unconscious and thus unable to perform a breath test. 579 U.S., at 475 (“It is true that a blood test, unlike a breath test, may be administered to a person who is unconscious (perhaps as a result of a crash) or who is unable to do what is needed to take a breath test due to profound intoxication or injuries. But we have no reason to believe that such situations are common in drunk-driving arrests, and when they arise, the police may apply for a warrant if need be”).

SOTOMAYOR, J., dissenting

B

Those cases resolve this one. *Schmerber* and *McNeely* establish that there is no categorical exigency exception for blood draws, although exigent circumstances might justify a warrantless blood draw on the facts of a particular case. And from *Birchfield*, we know that warrantless blood draws cannot be justified as searches incident to arrest. The lesson is straightforward: Unless there is too little time to do so, police officers must get a warrant before ordering a blood draw. See 579 U. S., at 474–475; *McNeely*, 569 U. S., at 152.

Against this precedential backdrop, Wisconsin’s primary argument has always been that Mitchell consented to the blood draw through the State’s “implied-consent law.” Under that statute, a motorist who drives on the State’s roads is “deemed” to have consented to a blood draw, breath test, and urine test, and that supposed consent allows a warrantless blood draw from an unconscious motorist as long as the police have probable cause to believe that the motorist has violated one of the State’s impaired driving statutes. See Wis. Stat. § 343.305.

The plurality does not rely on the consent exception here. See *ante*, at 846. With that sliver of the plurality’s reasoning I agree. I would go further and hold that the state statute, however phrased, cannot itself create the actual and informed consent that the Fourth Amendment requires. See *Randolph*, 547 U. S., at 109 (describing the “voluntary consent” exception to the warrant requirement as “‘jealously and carefully drawn’”); *Bumper v. North Carolina*, 391 U. S. 543, 548 (1968) (stating that consent must be “freely and voluntarily given”); see also *Schneckloth v. Bustamonte*, 412 U. S. 218, 226–227 (1973) (explaining that the existence of consent must “be determined from the totality of all the circumstances”). That should be the end of this case.

III

Rather than simply applying this Court’s precedents to address—and reject—Wisconsin’s implied-consent theory,

SOTOMAYOR, J., dissenting

the plurality today takes the extraordinary step of relying on an issue, exigency, that Wisconsin has affirmatively waived.⁴ Wisconsin has not once, in any of its briefing before this Court or the state courts, argued that exigent circumstances were present here. In fact, in the state proceedings, Wisconsin “conceded” that the exigency exception does not justify the warrantless blood draw in this case. App. 66; see 2018 WI 84, ¶12, 383 Wis. 2d 192, 202, 914 N. W. 2d 151, 155 (“The State expressly stated that it was not relying on exigent circumstances to justify the blood draw”). Accordingly, the state courts proceeded on the acknowledgment that no exigency is at issue here. As the Wisconsin Court of Appeals put it:

“In particular, this case is not susceptible to resolution on the ground of exigent circumstances. No testimony was received that would support the conclusion that exigent circumstances justified the warrantless blood draw. [The officer] expressed agnosticism as to how long it would have taken to obtain a warrant, and he never once testified (or even implied) that there was no time to get a warrant.” App. 66.

The exigency issue is therefore waived—that is, knowingly and intentionally abandoned, see *Wood v. Milyard*, 566 U. S. 463, 474 (2012)—and the Court should not have considered

⁴ The plurality criticizes me for supposedly suggesting that today’s decision is based on a “case-specific showing of exigent circumstances.” *Ante*, at 850, n. 2. But I acknowledge that the plurality does not go so far as to decide that exigent circumstances justify the search in Mitchell’s case, perhaps because the facts here support no such conclusion. See *infra*, at 875–876. Indeed, rather than confine itself to the facts and legal issues actually presented in this case, the plurality instead creates a new *de facto* categorical rule out of thin air. The plurality does so without any evidence that such a rule is necessary in all, or even most, cases. See *infra*, at 875–877. That the plurality reaches out to determine the rights of all drivers, rather than just Mitchell, makes today’s decision more misguided, not less.

SOTOMAYOR, J., dissenting

it. See, e. g., *Heckler v. Campbell*, 461 U. S. 458, 468, n. 12 (1983); cf. *Alabama v. Shelton*, 535 U. S. 654, 674 (2002) (“We confine our review to the ruling the Alabama Supreme Court made in the case as presented to it”).

Rather than hold Wisconsin to a concession from which it has never wavered, the plurality takes on the waived theory. As “‘a court of review, not of first view,’” however, this Court is not in the business of volunteering new rationales neither raised nor addressed below, and even less ones that no party has raised here. *Timbs v. Indiana*, 586 U. S. 146, 155 (2019); see, e. g., *Star Athletica, L. L. C. v. Varsity Brands, Inc.*, 580 U. S. 405, 413 (2017); cf. *Kentucky v. Stincer*, 482 U. S. 730, 747–748, n. 22 (1987) (declining to review a respondent’s previously unraised claim “[b]ecause the judgment [was] that of a state court” and no “exceptional” circumstances were present).

There are good reasons for this restraint. Ensuring that an issue has been fully litigated allows the Court “the benefit of developed arguments on both sides and lower court opinions squarely addressing the question.” *Yee v. Escondido*, 503 U. S. 519, 538 (1992). It also reflects a central “‘premise of our adversarial system’”: Courts sit to resolve disputes among the parties, not “‘as self-directed boards of legal inquiry and research.’” *Lebron v. National Railroad Passenger Corporation*, 513 U. S. 374, 408 (1995) (O’Connor, J., dissenting) (quoting *Carducci v. Regan*, 714 F. 2d 171, 177 (CA DC 1983) (Scalia, J.)).

These rules, in other words, beget more informed decision-making by the Court and ensure greater fairness to litigants, who cannot be expected to respond pre-emptively to arguments that live only in the minds of the Justices. Cf. *Granite Rock Co. v. Teamsters*, 561 U. S. 287, 306, and n. 14 (2010); *Yee*, 503 U. S., at 535–536. These principles should apply with greater force when the issues were not merely forfeited but affirmatively “conceded” below, App. 66, and where, as here, the question is one of constitutional dimension. The

SOTOMAYOR, J., dissenting

plurality acts recklessly in failing to honor these fundamental principles here.⁵

IV

There are good reasons why Wisconsin never asked any court to consider applying any version of the exigency exception here: This Court's precedents foreclose it. According to the plurality, when the police attempt to obtain a blood sample from a person suspected of drunk driving, there will "almost always" be exigent circumstances if the person falls unconscious. *Ante*, at 843. As this case demonstrates, however, the fact that a suspect fell unconscious at some point before the blood draw does not mean that there was insufficient time to get a warrant. And if the police have time to secure a warrant before the blood draw, "the Fourth Amendment mandates that they do so." *McNeely*, 569 U. S., at 152. In discarding that rule for its own, the plurality may not "revisit" *McNeely*, *ante*, at 849, but the plurality does ignore it.

A

The exigent-circumstances exception to the Fourth Amendment warrant requirement applies if the State can

⁵ A related but distinct point: The issue on which the plurality resolves this case is not "fairly included" in the question on which the Court granted certiorari. See this Court's Rule 14.1(a). The Court granted certiorari to answer "[w]hether a statute authorizing a blood draw from an unconscious motorist provides an exception to the Fourth Amendment warrant requirement." Pet. for Cert. ii; accord, *ante*, at 846. The answer to that question is no. Whether exigent circumstances nevertheless require that the warrantless blood draw be upheld is an independent issue. True, that issue might affect the same "category of cases," *ante*, at 850, n. 2, but that would be true of all sorts of matters not fairly included in the question on which this Court granted certiorari. "Both [issues] might be subsidiary to a question embracing both—[Was suppression appropriate?—]—but they exist side by side, neither encompassing the other." *Yee v. Escondido*, 503 U. S. 519, 537 (1992). This Court applies a "heavy presumption against" venturing beyond the question presented, even when the parties ask it to do so. *Ibid.* Here, of course, the plurality ventures forth to provide guidance entirely of its own accord. One wonders why the Court asked for briefing and oral argument at all.

SOTOMAYOR, J., dissenting

demonstrate a “compelling need for official action and no time to secure a warrant.” *Michigan v. Tyler*, 436 U. S. 499, 509 (1978); see also *King*, 563 U. S., at 460 (The exception applies “when ‘the exigencies of the situation’ make the needs of law enforcement so compelling that [a] warrantless search is objectively reasonable” (some internal quotation marks omitted)). The Court has identified exigencies when officers need to enter a home without a warrant to provide assistance to a “seriously injured” occupant or one facing an imminent threat of such injury, *Brigham City v. Stuart*, 547 U. S. 398, 403 (2006); when officers are in “hot pursuit” of a fleeing suspect, *United States v. Santana*, 427 U. S. 38, 42–43 (1976); and when officers need to enter a burning building to extinguish a fire, *Tyler*, 436 U. S., at 509.

Blood draws implicate a different type of exigency. The Court has “recognized that in some circumstances law enforcement officers may conduct a search without a warrant to prevent the imminent destruction of evidence.” *McNeely*, 569 U. S., at 149. To determine whether exigent circumstances justify a warrantless search, the Court “looks to the totality of circumstances” in the particular case. *Ibid.* “The critical point is that . . . the exigent circumstances exception requires a court to examine whether an emergency justified a warrantless search in each particular case.” *Riley*, 573 U. S., at 402.

In *McNeely*, Missouri urged the Court to adopt a categorical rule that the natural dissipation of alcohol from a person’s bloodstream will always create exigent circumstances that allow police officers to order a blood draw without obtaining a warrant. 569 U. S., at 149–150. The Court declined. Even though the gradual dissipation of a person’s BAC means that “a significant delay in testing will negatively affect the probative value” of a blood test, eight Justices hewed to the traditional, “case-by-case assessment of exigency,” given that police will at least in some instances have time to get a warrant. *Id.*, at 152; see *id.*, at 166–167 (opinion of

SOTOMAYOR, J., dissenting

ROBERTS, C. J.); *id.*, at 175 (“The majority answers ‘It depends,’ and so do I”).

In that way, cases involving blood draws are “different in critical respects” from the typical destruction-of-evidence case that presents police officers with a “‘now or never’” situation. *Id.*, at 153 (opinion of the Court). Unlike situations in which “police are just outside the door to a home” and “evidence is about to be destroyed, a person is about to be injured, or a fire has broken out,” some delay is inherent when officers seek a blood test regardless of whether officers are required to obtain a warrant first. *Id.*, at 171 (opinion of ROBERTS, C. J.); see *id.*, at 153 (opinion of the Court). In the typical situation, the police cannot test a person’s blood as soon as the person is arrested; police officers do not draw blood roadside. Rather, they generally must transport the drunk-driving suspect to a hospital or other medical facility and wait for a medical professional to draw the blood. That built-in delay may give police officers time to seek a warrant, especially if the suspect is brought to the hospital by an officer or emergency-response professional other than the one who applies for the warrant.

Moreover, although “the alcohol level in a person’s blood begins to dissipate once the alcohol is fully absorbed,” *id.*, at 152, it does so “over time in a gradual and relatively predictable manner,” *id.*, at 153. Thus, even though BAC evidence is of course critical for law enforcement purposes, “the fact that the dissipation persists for some time means that the police—although they may not be able to do anything about it right away—may still be able to respond to the ongoing destruction of evidence later on.” *Id.*, at 172 (opinion of ROBERTS, C. J.). For one, there may well be time for police officers to get a warrant before a person’s BAC drops significantly. See *id.*, at 172–173. In addition, assuming delays do not stretch so long as to cause accuracy concerns, “experts can work backwards from the BAC at the time the sample was taken to determine the BAC at the time of the

SOTOMAYOR, J., dissenting

alleged offense.” *Id.*, at 156 (opinion of the Court). Contrary to the plurality’s fear mongering, in other words, a small delay to obtain a warrant is hardly a recipe for lawless roadways.

Meanwhile, as the Court has observed, significant technological advances have allowed for “more expeditious processing of warrant applications.” *Id.*, at 154; see *Riley*, 573 U. S., at 401. In the federal system, magistrate judges can issue warrants based on sworn testimony communicated over the phone or through “‘other reliable electronic means.’” *McNeely*, 569 U. S., at 154 (quoting Fed. Rule Crim. Proc. 4.1). In a sizable majority of States, police officers can apply for warrants “remotely through various means, including telephonic or radio communication, electronic communication such as e-mail, and video conferencing.” *McNeely*, 569 U. S., at 154; see *ibid.*, n. 4 (collecting state statutes). And the use of “standard-form warrant applications” has streamlined the warrant process in many States as well, especially in this context. *Id.*, at 154–155. As a result, judges can often issue warrants in 5 to 15 minutes. *Id.*, at 173 (opinion of ROBERTS, C. J.). Of course, securing a warrant will always take some time, and that time will vary case to case. But “[t]here might . . . be time to obtain a warrant in many cases.” *Id.*, at 172. Thus, as *McNeely* made clear, the exigency exception is appropriate only in those cases in which time is not on the officer’s side.

B

The reasons the Court gave for rejecting a categorical exigency exception in *McNeely* apply with full force when the suspected drunk driver is (or becomes) unconscious.

In these cases, there is still a period of delay during which a police officer might take steps to secure a warrant. Indeed, as the plurality observes, see *ante*, at 854–855, that delay is guaranteed because an unconscious person will need to be transported to the hospital for medical attention. Such a

SOTOMAYOR, J., dissenting

delay occurred in Mitchell's case, even more so than it did in McNeely's. See *McNeely*, 569 U. S., at 145–146 (explaining that the police officer transported McNeely first to the police station and then to the hospital for blood testing, taking approximately 25 minutes); App. 63–64 (explaining that the police officer arrested Mitchell, drove him to the police station, placed him in a holding cell, and then transported him to the hospital and obtained a blood sample over the course of 90 minutes).

Likewise, an unconscious person's BAC dissipates just as gradually and predictably as a conscious person's does. Furthermore, because unconsciousness is more likely to occur at higher BACs, see Martin, *Measuring Acute Alcohol Impairment*, in *Forensic Issues in Alcohol Testing* 1, 8 (S. Karch ed. 2008), the BACs of suspected drunk drivers who are unconscious will presumably be higher above the legal limit—and thus remain above the legal limit for longer—than is true for suspects who are conscious and close to sobering up. And, of course, the process for getting a warrant remains the same.

All told, the mere fact that a person is unconscious does not materially change the calculation that the Court made in *McNeely* when it rejected a categorical exigency exception for blood draws. In many cases, even when the suspect falls unconscious, police officers will have sufficient time to secure a warrant—meaning that the Fourth Amendment requires that they do so.

C

The plurality distinguishes unconscious drunk-driving suspects from others based on the fact that their unconsciousness means that they will, invariably, need urgent medical attention due to their loss of consciousness. See *ante*, at 854–855. But the need for medical care is not unique to unconscious suspects. “Drunk drivers often end up in an emergency room,” whether or not they are unconscious when the police encounter them. *McNeely*, 569 U. S., at 171

SOTOMAYOR, J., dissenting

(opinion of ROBERTS, C. J.). The defendant in *Schmerber* was hospitalized, yet the Court did not, in that case or in *McNeely* decades later, promulgate a categorical exception for every warrantless blood draw. That Mitchell was hospitalized is likewise insufficient here. Even if the plurality is right that every suspect who loses consciousness will need medical care, not every medical response will interfere with law enforcement's ability to secure a warrant before ordering a blood draw. See *McNeely*, 569 U. S., at 153–154 (opinion of the Court); *id.*, at 171–172 (opinion of ROBERTS, C. J.).⁶

Because the precedent is so squarely against it, the plurality devotes much of its opinion instead to painting a dire picture: the scene of a drunk-driving-related accident, where police officers must tend to the unconscious person, others who need medical attention, oncoming traffic, and investigatory needs. See *ante*, at 856. There is no indication, however, in the record or elsewhere that the tableau of horrors the plurality depicts materializes in most cases. Such circumstances are certainly not present in this case, in which

⁶The plurality's new rule, in addition to requiring a defendant to prove that the officer had time to get a warrant, also appears to require the defendant to show that his blood would not have been drawn absent law enforcement's need for a blood sample. See *ante*, at 857. That is, a suspect can never prevail under the new rule if the hospital staff draws his blood for its own noninvestigatory medical reasons. But, again, the relevant question is whether the evidence is likely to dissipate before the police can obtain a warrant. This particular aspect of the plurality's approach offers no help in answering that question. The plurality separately suggests that, because an unconscious person may well undergo a blood test for medical purposes regardless, its *de facto* categorical exception "could *lessen* the intrusion" of a blood draw. See *ante*, at 855, n. 8. But the fact that "people voluntarily submit to the taking of blood samples as part of a physical examination," *Birchfield v. North Dakota*, 579 U. S. 438, 463–464 (2016), does not make the process any less intrusive when performed at the behest of law enforcement. Although one piercing is of course less cumbersome than two, the privacy interests at stake go well beyond physical discomfort. See *supra*, at 864–865; *Birchfield*, 579 U. S., at 464; *McNeely*, 569 U. S., at 148.

SOTOMAYOR, J., dissenting

the police encountered Mitchell alone, after he had parked and left his car; indeed, Mitchell lost consciousness over an hour after he was found walking along the lake. The potential variation in circumstances is a good reason to decide each case on its own facts, as *McNeely* instructs and as the Court did in *Schmerber*. See *McNeely*, 569 U. S., at 149–151, 156. The plurality instead bases its *de facto* categorical exigency exception on nothing more than a “‘considerable overgeneralization,’” *id.*, at 153, as well as empirical assumptions that the parties not only lacked a chance to address, but that are also belied by Wisconsin’s concession in this case.⁷

If and when a case like the one the plurality imagines does arise, however, the police officers would not be “force[d] . . . to choose between” the “rival priorities” of getting a warrant and attending to “critical health and safety needs.” *Ante*, at 856. Of course, the police and other first responders must dutifully attend to any urgent medical needs of the driver and any others at the scene; no one suggests that the warrant process should interfere with medical care. The point is that, in many cases, the police will have enough time to address medical needs and still get a warrant before the putative evidence (*i. e.*, any alcohol in the suspect’s blood) dissipates. And if police officers “are truly confronted with a ‘now or never’ situation,” they will be able to rely on the exigent-circumstances exception to order the blood draw immediately. *McNeely*, 569 U. S., at 153 (some internal quotation marks omitted); *Riley*, 573 U. S., at 391. In any other

⁷ In addition to offering a justification for Wisconsin’s warrantless search that the State itself has disavowed, the plurality also relieves all States of their burden to justify similar warrantless searches. Until now, the Court has said that “the police bear a heavy burden when attempting to demonstrate an urgent need that might justify warrantless searches.” *Welsh v. Wisconsin*, 466 U. S. 740, 749–750 (1984); see *Coolidge v. New Hampshire*, 403 U. S. 443, 455 (1971). Today, the plurality turns that presumption on its head in favor of a new one that “almost always” authorizes the police to conduct warrantless blood draws even in the absence of an actual emergency. See *ante*, at 843.

SOTOMAYOR, J., dissenting

situation, though—such as in Mitchell’s and in many others—the officers can secure a warrant.

V

The Fourth Amendment, as interpreted by our precedents, requires police officers seeking to draw blood from a person suspected of drunk driving to get a warrant if possible. That rule should resolve this case.

The plurality misguidedly departs from this rule, setting forth its own convoluted counterpresumption instead. But the Fourth Amendment is not as pliable as the plurality suggests. The warrant requirement safeguards privacy and physical autonomy by “assuring citizens” that searches “are not the random or arbitrary acts of government agents.” *Skinner v. Railway Labor Executives’ Assn.*, 489 U. S. 602, 621–622 (1989); see *id.*, at 621.

There is no doubt that drunk drivers create grave danger on our roads. It is, however, “[p]recisely because the need for action . . . is manifest” in such cases that “the need for vigilance against unconstitutional excess is great.” *Id.*, at 635 (Marshall, J., dissenting). “Requiring a warrant whenever practicable helps ensure that when blood draws occur, they are indeed justified.” *McNeely*, 569 U. S., at 174 (opinion of ROBERTS, C. J.). For that reason, “the police bear a heavy burden” to justify a warrantless search like the one here based on “urgent need.” *Welsh v. Wisconsin*, 466 U. S. 740, 749–750 (1984).

The plurality today carries that burden for a State that never asked it to do so, not only here but also in a scattershot mass of future cases. Acting entirely on its own freewheeling instincts—with no briefing or decision below on the question—the plurality permits officers to order a blood draw of an unconscious person in all but the rarest cases, even when there is ample time to obtain a warrant. The plurality may believe it is helping to ameliorate the scourge of drunk driving, but what it really does is to strike another

GORSUCH, J., dissenting

needless blow at the protections guaranteed by the Fourth Amendment. With respect, I dissent.

JUSTICE GORSUCH, dissenting.

We took this case to decide whether Wisconsin drivers impliedly consent to blood alcohol tests thanks to a state statute. That law says that anyone driving in Wisconsin agrees—by the very act of driving—to testing under certain circumstances. But the Court today declines to answer the question presented. Instead, it upholds Wisconsin’s law on an entirely different ground—citing the exigent circumstances doctrine. While I do not doubt that the Court may affirm for any reason supported by the record, the application of the exigent circumstances doctrine in this area poses complex and difficult questions that neither the parties nor the courts below discussed. Rather than proceeding solely by self-direction, I would have dismissed this case as improvidently granted and waited for a case presenting the exigent circumstances question.